

Spokane County District Court
State of Washington, Plaintiff,
v. Theodora Elizabeth Montgomery-Reyes, Deceased Defendant.
Original cause number: 2020-CR-009876-RELIEF
Family member applicant: Alexandrina Katherine Montgomery-Reyes

FAMILY MEMBER PETITION TO VACATE CONVICTION
RCW 9.96.060(7)

Applicant Alexandrina Katherine Montgomery-Reyes applies on behalf of deceased defendant Theodora Elizabeth Montgomery-Reyes to vacate the convictions identified below. The applicant is the living family member; the original defendant is the deceased person.

Relationship to deceased defendant: Sibling, as confirmed against the family record

Convictions identified from the sentencing-court record:

Count 101; Prostitution; RCW 9A.88.030; conviction entered September 24, 2020
Count 102; Prostitution; RCW 9A.88.030; conviction entered September 24, 2020
Count 103; Prostitution; RCW 9A.88.030; conviction entered September 24, 2020

This application concerns only the listed RCW 9A.88.030 convictions in this original case. It does not seek relief for an ordinance conviction or any other offense.

RCW 9.96.060(7) permits a family member of a homicide victim to apply to the sentencing court on the victim's behalf. If the applicant qualifies, the court shall vacate the victim's record of conviction for prostitution under RCW 9A.88.030. The accompanying declaration and identified records support the application; the court determines qualification.

Applicant asks the court to vacate the identified convictions under subsection (7) and enter the corresponding order. The request does not rely on the ordinary three-year, new-crime or sentence-completion conditions, and does not require a trafficking finding or estate appointment.

Applicant contact address: 12875 West Example Meadows Boulevard, Apartment 204, Spokane Valley, WA 99216-1234
Telephone: 509-555-0198 extension 204
Email: alexandrina.montgomery.reyes@example.test

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Family Member Petition to Vacate Conviction - RCW 9.96.060(7) (continued)

Applicant petition signature:

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Petition signing date:

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Applicant printed name: Alexandrina Katherine Montgomery-Reyes

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DECLARATION OF FAMILY MEMBER

I am Alexandrina Katherine Montgomery-Reyes, the applicant. My relationship to deceased defendant Theodora Elizabeth Montgomery-Reyes is Sibling, as confirmed against the family record. The deceased defendant's conviction history is not my own conviction history.

Convictions addressed by this declaration:

Count 101; Prostitution; RCW 9A.88.030; conviction entered September 24, 2020

Count 102; Prostitution; RCW 9A.88.030; conviction entered September 24, 2020

Count 103; Prostitution; RCW 9A.88.030; conviction entered September 24, 2020

I supply the following factual sources and supporting information in my own words. The records must support homicide status and the family relationship; a death record without that information is not itself a homicide finding. No graphic narrative is requested.

Record source showing homicide status:

Identify the death certificate or court/police record supporting homicide status; death alone does not establish homicide.

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Record source supporting family relationship:

Identify evidence supporting the relationship. Do not supply graphic details.

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Conviction docket or judgment source:

Identify the sentencing-court docket or judgment for each listed conviction.

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Basis of personal knowledge and record identification:

Supply only facts you can truthfully declare and identify the supporting records.

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Declaration of Family Member in Support of Petition (continued)

Exhibit identifiers and descriptions:

Identify the actual attached evidence; follow local redaction/restricted-filing requirements.

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I declare under penalty of perjury under the laws of the State of Washington that the foregoing is true and correct.

Declaration signing city and state:

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Declaration signing date:

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Applicant declaration signature:

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Applicant printed name: Alexandrina Katherine Montgomery-Reyes

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PROPOSED ORDER ON FAMILY MEMBER PETITION
RCW 9.96.060(7)

For court review and completion only. This is a proposed order, not an entered ruling.

Convictions identified in the application:

Count 101; Prostitution; RCW 9A.88.030; conviction entered September 24, 2020

Count 102; Prostitution; RCW 9A.88.030; conviction entered September 24, 2020

Count 103; Prostitution; RCW 9A.88.030; conviction entered September 24, 2020

Court hearing date:

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Court finding: applicant qualifies under RCW 9.96.060(7):

[] The applicant is a family member of the deceased homicide victim and qualifies for relief as to the identified RCW 9A.88.030 convictions.

Court decision - granted or denied:

[] GRANTED: The identified record of conviction is vacated under RCW 9.96.060(7). The applicant's request is granted on behalf of the deceased defendant.

[] DENIED: The petition is denied for the reasons the court states below.

Additional court directions or reasons:

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If relief is granted, the clerk shall transmit the entered order to the Washington State Patrol and any local law-enforcement agency holding the relevant criminal-history information as required by RCW 9.96.060(8). No transmission is certified by this draft.

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Proposed Order on Family Member Petition (continued)

Judicial order date:

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Judicial signature:

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Judicial printed name:

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NOTICE OF HEARING

To the prosecuting attorney's office for this original case:

A hearing on the family member petition under RCW 9.96.060(7) is to be held at the date, time and place confirmed by the sentencing court and entered below. No hearing has been scheduled by generation of this blank notice. Use the court's required scheduling form when one is required instead of this custom notice.

Scheduled hearing date:

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Scheduled hearing time and time zone:

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Hearing courtroom, address or authorized remote access:

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Assigned judicial officer:

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Notice signature:

.....

Notice signing date:

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Applicant printed name: Alexandrina Katherine Montgomery-Reyes

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CERTIFICATE OF ACTUAL SERVICE

Complete only after actual service. The person who performs service supplies the recipient, document list, permitted method, actual destination and date. Generation of this page certifies no event. Use any proof-of-service form required by the court.

Actual recipient and prosecuting office:

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Documents actually served:

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Actual permitted service method:

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Actual service address or authorized electronic destination:

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Actual service date:

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Actual server printed name:

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Certificate of Actual Service (continued)

I declare under penalty of perjury under the laws of the State of Washington that the service information I
supplied above is true and correct.

Server signing city and state:

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Server signing date:

.....

Server signature:

.....

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FAMILY MEMBER FILING INSTRUCTIONS

This packet is for the living family member applying in the sentencing court on behalf of a deceased homicide victim whose conviction was for prostitution under RCW 9A.88.030. The defendant caption identifies the deceased person; the applicant signs only in the applicant's own capacity. Court qualification leads to mandatory vacation under RCW 9.96.060(7); a generated packet does not decide qualification.

Before using this custom vehicle, confirm with the sentencing court that it accepts the custom petition/declaration, proposed order, hearing notice and service proof for this route. Use any mandatory local vehicle instead. Kitsap District Court publishes its own 950780 petition and 950790 notice, and its instructions say the judge prepares the order. Do not require this proposed order where the court prepares it. Do not pass a Kitsap local form off as a statewide form. If the court's required vehicle is not available, stop for clerk or legal help before filing.

WHERE TO FILE

File in Spokane County District Court, the court that entered the convictions in 2020-CR-009876-RELIEF. Confirm the original plaintiff, deceased defendant's name, exact count/offense/statute and conviction date against the original judgment or docket. These fixture facts are synthetic; do not file these review PDFs. The custom vehicle requires confirmed acceptance by the actual sentencing court.

WHAT TO COMPLETE

Obtain the conviction docket or judgment, evidence supporting homicide status, and evidence supporting your family relationship. A death certificate is often useful; a court or police record may establish homicide status. Subsection (7) does not universally prescribe one particular certificate. Follow actual court requirements and the product safeguard of supporting evidence. Do not file graphic narrative or unnecessary private information. Ask the clerk about redaction and restricted filing before attaching sensitive records. If identity or relationship is disputed or records do not establish the required facts, stop for legal help.

In the declaration, identify the record source showing homicide status, record source supporting family relationship, conviction docket or judgment source, basis of personal knowledge and record identification, and exhibit identifiers and descriptions. Do not manufacture a declaration from a route choice. Read, complete and personally sign the declaration only when its contents are true. Supply actual signing city/state and date. The petition signature is also yours. Do not sign as the deceased defendant. No notary block is required by this adopted declaration vehicle; confirm the court's accepted execution practice.

THE PROPOSED ORDER

The order is caption-filled only apart from identifying the requested convictions. Leave qualification

findings, grant/deny choices, hearing date, extra directions, judicial signature/date and judicial name for the court. Never obtain a judge's signature before filing as though it were a participant prerequisite. If the court grants relief, obtain the entered order and ask the clerk about transmission to the Washington State Patrol and relevant local law-enforcement agencies under RCW 9.96.060(8). Vacatur is not a guarantee that every private database disappears.

HEARING AND SERVICE

Contact the sentencing court's clerk before filing for scheduling, accepted notice form, service requirements and hearing attendance. Complete a notice only from the actual court schedule. The held Washington vacatur instructions use copies of the petition and scheduling notice for the prosecuting office on the same day as filing; confirm those mechanics for this family-member vehicle. Make copies for the prosecutor and yourself. Serve the prosecuting attorney's office for the original case by a method the court permits, and file proof of actual service. If there is opposition or uncertainty, obtain legal help. The certificate's recipient, documents, method, destination, service date and server name stay blank until service actually happens; only the actual server signs and dates it.

FEE, TIMING AND LIMITS

No filing fee or waiver amount is established by the held route materials. Ask the sentencing-court clerk whether a fee applies, its amount, and the ordinary fee-waiver process if you cannot pay. Subsection (7) states no waiting period. Do not import ordinary three-year, new-crime or sentence-completion conditions; do not require trafficking proof or an estate appointment. The underlying offense must be the exact RCW 9A.88.030 offense, not an ordinance conviction silently treated as equivalent.

STOP CONDITIONS

The applicant is not a family member of the person who died.

The conviction may not be a RCW 9A.88.030 prostitution conviction.

The person whose record is at issue is living, in which case the survivor routes apply.

The applicant is distressed and needs a person rather than a packet. Ask only what is needed to route.

Also stop if homicide status is unsupported, the relationship is disputed, the sentencing court or custom vehicle is unconfirmed, or a required local form is unavailable.

This is a custom drafting vehicle under the adopted

WA-HOMICIDE-VICTIM-FAMILY-MEMBER-96060-7 decision, not an issuer form. It remains internal evidence pending independent semantic and original-page review. No commercial route is opened.